

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, July 9, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27415 against Police Officer Mark Gaiardelli, Tax Registry No. 941786. This case was conferenced on June 20, 2024, before Assistant Deputy Commissioner of Trials, Jeff Adler who approved the negotiated penalty of a Guilty Plea to the Charges and Specifications and forfeiture of twenty (20) days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27415
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, GAIARDELLI	FIRST MARK	M.I. J	COMMAND 113 PRECINCT
SHIELD NO. 555	TAX REGISTRY NO. 941786	SOCIAL SECURITY NO.	DATE APPOINTED 07/10/2006	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Mark GAIARDELLI, on or about September 24, 2021, at approximately 0800, while assigned to 113 PCT, and on duty, in the vicinity of Rockaway Boulevard and 149th Street, Queens County, used offensive language, in that they made remarks to § 87(2)(b) and § 87(2)(b) based upon race in that POGAIARDELLI stated in sum and substance "bunch of animals."	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Mark GAIARDELLI, on or about September 24, 2021, at approximately 0800, while assigned to 113 PCT, and on duty, in the vicinity of Rockaway Boulevard and 149th Street, Queens County, was discourteous to § 87(2)(b) and § 87(2)(b) in that PO GAIARDELLI stated in sum and substance, "I dont have time for these idiots," without police necessity.	PLEADED GUILTY	
3 . Police Officer Mark GAIARDELLI, on or about August 16, 2022, at approximately 0930, while assigned to 113PCT, and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading statement to the Civilian Complaint Review Board in that PO GAIARDELLI stated that his remarks to wit, "I don't have time for these idiots," was directed at his phone and was unrelated to § 87(2)(b) and § 87(2)(b)	PLEADED GUILTY	

DC Buccio
FIRST DEPUTY COMMISSIONER

8/9/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

8/20/24
DATE

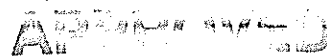
THIRD ENDORSEMENT

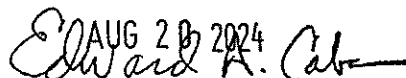
First Deputy Commissioner to Police Commissioner August 6, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-27415 against Police Officer Mark ~~Mark~~ Gaiardelli, Tax No. 941786, with the recommendation that Police Officer Gaiardelli forfeit twenty (20) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adlder reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur.
RECOMMEND APPROVAL.

TIK/jpc




Tania I. Kinsella
FIRST DEPUTY COMMISSIONER




EDWARD A. CABAN
POLICE COMMISSIONER